

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1145

By: Stewart

AS INTRODUCED

An Act relating to healing arts; defining terms; stating legislative findings; granting certain protections to practitioners of indigenous or traditional healing therapies or complementary and alternative healing practices; prohibiting certain acts by practitioners; providing for penalties; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 732 of Title 59, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Complementary and alternative healing practices" means the broad domain of healing methods and treatment including, but not limited to, naturopathy, ayurvedic, massage therapy, homeopathy, herbology, nutrition, iridology, and the Asian healing arts;

2. "Culture" means a way of life of a group of people including, but not limited to, the behaviors, beliefs, values,

1 customs, traditional practices, art, rituals, or ceremonies specific
2 to a people;

3 3. "Indigenous" or "native" means any individual with a
4 distinct language, culture, and belief; and

5 4. "Indigenous or traditional healing therapies" means any
6 healing art, practice, ritual ceremony, or modality that has been
7 historically performed and utilized by indigenous or native peoples.

8 B. The Legislature intends, by its enactment of this section,
9 to protect and preserve by this state, unfettered public access to
10 all indigenous or traditional healing therapies, and complementary
11 and alternative healing practices to protect and preserve the right
12 to practice and provide services according to this section.

13 C. Notwithstanding any other state law or rule, an individual
14 who does not hold a license, permit, certification, or registration
15 as a health care professional issued by this state shall not be in
16 violation of any health care professional practice act or other law
17 or rule if that individual or agent provides care or treatment in
18 compliance with subsection D of this section and does not falsely
19 represent himself or herself as a licensed practitioner of medicine
20 or other health care professional as described in Title 59 of the
21 Oklahoma Statutes, or fraudulently use any title or degree
22 appertaining to the licensed practice thereof, or falsely claim any
23 training, certification, or approval of any organization that he or
24 she does not have.

1 D. A practitioner of indigenous or traditional healing
2 therapies or complementary and alternative healing practices shall
3 not:

4 1. Perform surgery, or any other procedure that harmfully
5 penetrates the body;

6 2. Set fractures;

7 3. Prescribe or administer X- or Gamma ray radiation, or any
8 other radiation field not inherent to the human body;

9 4. Prescribe or administer a prescription drug or any
10 controlled substance;

11 5. Recommend interruption or elimination of prescribed
12 medications or treatments;

13 6. Conventionally diagnose a medical disease;

14 7. Forcefully move joints, or move joints beyond their normal
15 range of motion;

16 8. State, advertise, or otherwise falsely represent to any
17 individual that the person is licensed by, certified by, or
18 registered with this state to practice as a health care
19 professional; or

20 9. Have a felony conviction of any crime involving the
21 intentional harm of another person or moral turpitude.

22 E. Any person who fails to comply with this section may, as
23 provided by law, be subject to administrative action by the
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1 appropriate licensing board, criminal prosecution, civil liability,
2 or any other remedies provided by law.

3 SECTION 2. This act shall become effective November 1, 2025.

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